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OREGON ROAD LAWS BRIEFLY PRESENTED

IMPORTANT LAWS GOVERNING TRAFFIC IN STATE COMPILED FOR READERS

The editor of this paper has frequently been requested to publish the road laws of Oregon, but owing to the fact that doing so would necessitate taking too much space, the following is submitted with belief that it covers what is of vital importance to-day—the traffic laws of Oregon:

The laws of the road everywhere in this state are declared to be as specified in the following subdivisions.

1. Vehicles proceeding in opposite directions shall pass to the right, giving one-half the road to each;

2. Vehicles proceeding in the same direction overtake each other by passing to the left;

3. The overtaking vehicle shall maintain its speed until clear of the overtaken vehicle, and for such distance thereafter as shall prevent dust and mud throwing upon the overtaken vehicle;

4. The signal to pass shall be given by one blast or stroke of horn, bell, whistle, gong or other signalling device;

5. Should the overtaken vehicles then not give way, three such blasts or signals shall be given, and on failure to comply therewith the overtaking vehicle may at the next suitable place safe to both vehicles go by without further signal;

6. It shall be the duty of every overtaken vehicle to turn to the right and give one-half of the road to the overtaking vehicle;

7. Vehicles approaching an intersecting road, street or highway shall be under control so as to permit the vehicle on the right of the vehicle approaching to first cross the intersecting street, road or highway;

8. At all intersections of the vehicle approaching the intersection from the right of any other vehicle approaching the intersection shall have the right of way;

9. All vehicles approaching an intersection of a street, road or highway with the intention of turning thereat shall, in turning to the right, keep closely to the right, and in turning to the left shall run to and beyond the center of the intersection;

10. In all passing and overtaking such assistance shall be given by the occupants of each vehicle respectively to the other as the circumstances shall demand and either request and each of them exercise due care and caution to get clearance and avoid accidents. Every person having control or charge of any automobile, motor vehicle or motorcycle, whenever upon any public street or way, and approaching any vehicle drawn by a horse or horses or any horse upon which any person is riding, shall operate and manage and control such automobile, motor vehicle or motorcycle in such manner as to exercise every reasonable precaution to prevent the frightening of any such horse or horses, and to insure the safety and protection of any person riding or driving the same. And if such horse or horses appear frightened the person in control of such motor vehicle shall reduce its speed, and if requested by signal or otherwise by the driver of such horse or horses, shall not proceed further toward such animal unless such movement be necessary to avoid accident or injury, or until such animal appears to be under the control of its rider or driver;

11. In passing railroad or street cars operated in any city, town or village in this State, vehicles shall be so operated upon that side of said street or railroad car with due care and caution that the safety of passengers boarding or alighting from such street or railroad car shall be fully protected, and for that purpose said vehicle shall be brought to a stop, if necessary, but upon the other or left side of said street or railroad car, should there be a clear passage, said vehicle shall be permitted to so increase its speed for the necessary distance to negotiate a safe clearance between said street or railroad car and said vehicle so desiring to pass, and the rate of speed requisite and necessary so to do shall not be deemed to be an excessive rate of speed, having due regard to the speed of said railroad or street car;

12. In parades, at theatres, and all other occasions and places where traffic is congested, vehicles shall be operated with due care and caution, and jockeying vehicles or running by for position is prohibited by this Act. Every vehicle, upon embarking and discharging its load, shall immediately move out and away from the congested area, and the next vehicle shall follow the same;

13. Every vehicle shall be kept upon the right half of the street, road or highway traveled when the view ahead is not clear for at least one hundred yards;

14. Every motor vehicle, when moving in defiles, canyons or mountain passes where the curvature of the road or highway prevents a clear view for a distance of one hundred yards ahead, shall be held under control and not permitted to coast, and shall in approaching all curves give the signal with frequent blasts or strokes of horn bell, whistle, gong or other signalling device of its approach, and upon all

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NEW CHARTER MAY BE OFFERED CITY

WOULD GIVE COUNCIL POWER TO CONDEMN RIVER FRONT DOCK SITES

NEW DOCUMENT MUCH NEEDED

Advocates May Include Provision for Election of Mayor by Vote of Council

Because of the fact that the city council has no authority under the present municipal charter to condemn river front property for the erection of municipal docks the council will hold a special meeting next Wednesday evening to determine whether or not the city is to have a new and entirely up-to-date charter or amend the one in use to fit the emergency.

Property along the river front and elsewhere can be condemned for a number of other purposes, but no provision was made for condemnation for public dock purposes. This point could be covered in an amendment, but the mass of the charter seems to be amendments as it is and those who have made a careful study of the document are of the opinion that it has outlived its value and that the present is the right time for the adoption of a new instrument.

Mayor Hackett has called a special meeting for next Wednesday evening when the council will decide as to whether it is to order the compilation of a new charter containing this and other highly desirable amendments or whether these features are to be added by further amendment.

Certain students of civic affairs have also proposed the inclusion of a semi-commission form of government plan in a new charter in case a revised instrument should be ordered. As tentatively outlined this plan provides for the election of five councilmen who will be entrusted with the election of the mayor, taking that duty out of the hands of the voters directly. This subject will also receive discussion at next week's meeting, in all probability.

Mayor Hackett is of the opinion that the dock problem and the condemnation authority necessary can be dealt with through an amendment to the present charter.

"I do not believe that this is the proper time for the preparation of a new charter," said the mayor yesterday. "Our trouble can be thoroughly overcome through an amendment and it appears to me that it would be foolish for the council to consider the adoption of a new charter."

"As far as I can see," said Christian Schubel, city attorney, "the city is sadly in need of an up-to-date charter. The one in use is crowded with amendments and I personally would dislike to have a hand in the preparation of other amendments covering such important matters as the further condemnation of river front property. This is desirable, I will admit, but it should be contained in a new charter. The council could achieve a lasting fame for itself and do the city a genuine service by ordering the compilation of a new charter. It is not desirable that the present charter be amended any more than it already is."

In 1912 a charter was prepared and presented to the city council and voters for adoption in place of the charter in use now. The proposition was rejected and the present instrument remained in use. That it is not serving municipal purposes is conceded. The proposed charter of 1912 is evidently a very desirable instrument and would need only slight revision and addition to meet the needs of the city government. The power to condemn river front property for dock purposes and, perhaps, the plan of electing a mayor in the council chamber, as provided in the charter of 1912, will be destined for inclusion in a new instrument if one is ordered.

It is considered very desirable that the city get title to water front property where public docks can be built and to this end a councilmanic committee is already conducting an investigation. This matter, therefore, will receive first consideration in discussion of new charters or further amendment.

BARRETT BREAKS LEG

"May I have a few tacks. I want to repair my foot," said L. Barrett when he arrived at his home at the Iowa house here after he had suffered an accident which broke his leg, while helping to move a house at West Linn this week.

Mr. Barrett fell between two large rocks and before he could save himself his leg was broken at the ankle. In spite of the injury Mr. Barrett walked to his rooming house unassisted and requested tacks for the repair of the injury, revealing the fact that the broken leg was made of wood. He has entirely recovered from his injury and its remedy is said to have been entirely painless.

C. E. SPENCE ON TOUR OF TAX INSTRUCTION

"FLYING SQUADRON" WITH LOCAL MAN AT HELM WILL HOLD MANY MEETINGS

To carry the meaning of the tax limitation bill and the rural credits bill to the voters in every section of the state a "flying squadron," headed by Charles Spence, of Beaver Creek, master of the state grange, will start touring the state next Monday. Part of the trip will be made by automobile and the rest by rail. Mr. Spence will be accompanied by Walter Pierce, president of the State Taxpayers' league; Oswald West, Professor Hector McPherson, of the Oregon Agricultural college, and Robert E. Smith, of Roseburg.

The state Grange is sponsor for the rural credits bill and Mr. Spence, as head of the legislative committee of the State Taxpayers' league, has taken an active interest in securing the enactment of the bill proposed by that organization. Both the measures will be explained in detail wherever "the squadron" travels.

The speakers will appear Monday at Corvallis, and from there will journey to Eugene, Albany and Salem. By rail the proponents of the measures will go to Ashland, Medford, Grants Pass, Roseburg and then return to Oregon City. All the small intervening towns will be on the itinerary. It has been planned to visit 24 towns in western Oregon in two weeks.

From Oregon City and Portland the lower Columbia river towns as far as Astoria will be visited, and the western Oregon trip will be concluded at The Dalles. Eastern Oregon then will be the objective of the "flying squadron."

As soon as the state has been covered Mr. Smith and Mr. Spence intend to visit all the smaller towns and devote their time in speaking for the proposed laws until the November election.

MERCHANT DESIRES CITY HALL PROPERTY

COUNCIL IS DIVIDED ON MATTER OF RECONSTRUCTING OR BUILDING ANEW

An Oregon City business man has asked through Mayor Hackett for a lease upon the city hall property on Main street between Seventh and Eighth, with the idea of building a modern brick store and office building thereon. The plan would be to lease the land for a long term of years and turn it back to the city when the lease had expired.

This offer has, perhaps, divided the council in regard to the disposition of the city hall site more than ever. Some members of the council since the mayor suggested some time ago the rebuilding of the hall, have favored the erection of an entirely new building with the funds derived from the sale of the present site. The other portion of the council supports the mayor's contention that the best interests of the city would be served by the reconstruction of the city hall on its present site, bringing the building on a line with other Main street fronts.

Two applications for rental of the store room that would be created with the reconstruction have been filed with the mayor and on Tuesday the plan to lease the property from the city was submitted by a local business man. The subject will be brought before the council at an early date and some action will undoubtedly be taken at the meeting.

The present city hall is not suited to the needs of the council and the city could benefit greatly by the execution of plans for its reconstruction, thinks Mayor Hackett and others who are interested. The idea of building a new hall for the city fathers is considered a good one by many people, although they realize that it would entail the expenditure of a large sum of money. This expenditure they think could be handled with the proceeds from the sale of the property upon which the present building stands.

ALDERMAN RESIGNS

Milwaukee Councilman's Resignation Precedes Recall Petition

There will be no recall election to oust P. C. Harlow, councilman of Milwaukee, for the reason that the latter's resignation is in the hands of City Recorder Mathews, where it has been quietly reposing since August 6, or several days before the recall petition was started in circulation, and it is to be presented to the council at its next meeting, possibly at a special meeting, which, if called, it is expected will result in the acceptance of the resignation and the election of a successor.

Harlow is the third of a group of councilmen who have been bitterly fought. Henry Loeding and T. N. Hopkins, the other two, having previously resigned.

WEST'S VIEWS ON O. & C. LAND GRANT

EX-GOVERNOR ADVISES COUNTY COURT TO LEAVE LANDS OFF TAX ROLL

TO TAX WOULD BE MISTAKE

Taxation Would Overthrow Authority of Federal Government in Efforts to Classify

Oswald West, ex-Governor of Oregon, and now special agent for the Federal government in the disposition of the Oregon & California land grants, Wednesday issued a statement designed to inform county officials of his views as a special agent, on the right of counties to continue on or return to the tax rolls lands in the grant previously held vested in the railroad company. Mr. West's advice to the county officials is to leave the lands off the tax roll for the coming year and thus avoid possible complications.

The statement, which is an answer to the recommendation made Tuesday by Charles L. McNary, of Salem; justice of the supreme court of Oregon, that the lands be kept on the assessment rolls, follows:

"These lands were originally owned by the United States and were granted to the railroad company, but the grant carried certain covenants which, being violated, caused the United States supreme court to say: 'Congress shall have a reasonable opportunity to provide by legislation for their disposition in accordance with such policy as it may deem fitting under the circumstances and at the same time secure to the defendants all the value the granting acts conferred upon the railroads.'

"On June 9, 1916, congress took such action and in so doing provided that the taxes accrued and now unpaid on the lands reverted in the United States shall be paid by the treasurer of the United States, upon order of the secretary of the interior, as soon as may be after the approval of this act and a sum sufficient to make such payment is hereby appropriated."

"It is evident that title to the lands must be in one of two parties, the railroad company or the United States. If they still belong to the railroad company, they can of course be taxed, but if title has reverted in the United States they cannot be taxed.

"Should they be placed on the tax roll it will be notice to the world that county officials consider the title still in the railroad company and that the government has no claim on the lands; that Oregon's fight for the recovery of the grant is all 'bunk'; that the government in its efforts to classify the lands and open them to settlement and taxation is without authority and that in paying he back taxes it will be paying upon the property of others.

"County officials have just been notified to prepare their claims and when they are received and approved, prompt action will be taken towards their payment in accordance with the statute. Notices are also being sent to county officials calling attention to the fact that the lands should not be placed upon the rolls now being prepared.

"If this notice is disregarded and the lands again assessed, it will result in an alleged claim for taxes which the secretary of the interior cannot pay and as the sheriff will not be in position to receipt in full for all tax claims against the lands, when the government is prepared to make payment of those now due, it will likely postpone their payment indefinitely.

"County officials cannot blow hot and cold in this matter. They surely cannot expect the government to pay these taxes unless they recognize the government's claim of ownership. If they insist on assessing the lands again and to the railroad company, one would naturally expect them to look to the railroad company for payment of back taxes.

"My advice to county officials is to leave the lands off the taxroll for the coming year and thus avoid complications which would surely arise. Should the supreme court hold the act of June 9 unconstitutional and confirm the title of the railroad company, the sheriffs of the several counties will have full authority under section 3679 of the code to place the property on the taxrolls and collect the back taxes."

Tourists Visit

Jack Eakin and Fred Gooch, of Dallas, Ore., spent some time today in Oregon City en route home from a California tour in the Eakin automobile. The young men covered a great distance and returned through central and eastern Oregon, where they were greatly impressed with the wide expanse of wheat fields. Eakin is a son of H. C. Eakin of Dallas, a well-known attorney, and is a student at the Oregon Agricultural college.

Pneumonia is a communicable disease.

HUNTERS READY FOR SEASON'S OPENING

CALL OF THE WILD BRINGS OUT LARGE NUMBER OF DEER HUNTERS HERE

The deer season opened in Oregon August 15 and Tuesday many Clackamas county sportsmen were in the mountains in quest of buck deer. Many parties left early in the week for points up the Clackamas around the Oak Grove creek country where there is said to be an abundance of game this summer. Only buck deer with horns can be shot and the season closes October 31. Three deer is the season limit. Reports from the Estacada country are to the effect that many hunting parties have passed through that community on their way up the Clackamas gorges.

The game warden of the state, too are out in numbers and vouch for the over-anxious hunter who violates the many provisions of the game laws. Sportsmen should remember that it is always unlawful:

To kill mountain sheep, antelope, elk, beaver, female deer, spotted fawn, silver pheasants, golden pheasants, Reeves' pheasants, English partridge, Hungarian partridge, Franklin grouse or fool hen, bob-white quail, swan, wood duck, wild turkey, least sandpiper, western sandpiper, solitary sandpiper, semi-palmated plover, snowy plover, and all other birds of any kind, except those on which there is an open season.

To rob any birds' nests except such birds as are not protected by law.

To hunt without having hunting license on person, and to refuse to show same on demand of proper officer or owner or representative of real property where hunting.

To hunt at night.

To sell or have in possession plumage of protected birds.

To hunt on any game reservation.

To disguise sex or kind of game.

To hunt deer with dogs.

To lie in wait near licks while hunting deer.

To sell game of any kind except when propagated according to law.

To shoot game from public highways or railroad rights of way.

To wantonly waste game.

For aliens to hunt without a special gun license.

To shoot from any power, sink or box.

To hunt on enclosed or occupied unenclosed lands without permission of owner.

To trap fur-bearing animals without a license.

To burn tules between February 15 and September 15, excepting by permit from State Game Warden.

To have in possession more than 40 pounds of jerked venison.

To trap, net, or ensnare game animals, birds or fish, except as expressly provided.

To hunt within the corporate limits of any city or town, public park or cemetery, or on any campus or grounds of any public school, college, or university, or within the boundaries of any watershed reservation as set aside by the United States to supply water to cities, or within any national bird or game reservation.

To resist game warden or other officers charged with the enforcement of the game laws.

MRS. FORD IS DEAD AT HER SALEM HOME

WIFE OF METHODIST DISTRICT SUPERINTENDENT FORMERLY LIVED HERE

The sad news was received in Oregon City early this week that Mrs. T. B. Ford, formerly of this city, had passed away suddenly at her home in Salem.

Mrs. Ford was well known here, where her husband, Rev. T. B. Ford, was for several years pastor of the local Methodist church. About a year ago Mr. Ford was made superintendent of the Willamette Valley division of the Methodist diocese and the family moved to Salem.

Mrs. Ford had hundreds of friends here and was beloved by all who knew her. Oregon City generally is grieved at her sad demise and sympathizes with the bereaved husband and family in the death of wife and mother. Two daughters, Misses Sadye and Ivy, and two sons, Burgess and Olin F., survive the deceased.

A number of Oregon City people attended the funeral, which was held at Portland at 2 o'clock this afternoon. A service was also held at Salem this morning and several Oregon City people went to the capital city for the sad ceremony.

Mrs. Ford was born at Ozark, Ark., and in 1874 was married to Dr. Ford, with whom she came to the west in 1890. The family first settled in Washington and later came to this state.

There is no distress along the Mexican border, only distress amongst those who for political purposes have vainly endeavored to beget distress.

EFFICIENCY IDEA IS IN NEW BALLOT

CRIDGE OUTLINES WORKING OF THE EFFECTIVE BALLOT BEING WIDELY ADOPTED

WOULD REPLACE WARD PLAN

Said to Produce Unselfish, Patriotic Men for Public Office Where-ever Adopted

(By Alfred D. Cridge)

Ashtabula, Ohio, has put into practice the election of its councilmen by the effective ballot.

Edmonton and Calgary, of Alberta, have been given permission to provide for the effective ballot in their charters.

What is the effective ballot?

It is a form of voting and counting returns that gives all groups and parties in a city or political unit of any kind—county, state or nation—representatives in the law making body in proportion to voting strength.

In all political contests two great divisions immediately appear, the conservative and the liberal. There is always a radical element developed, and an ultra-conservative element.

Any group of men discussing public questions will roughly divide along these general lines. Our present form of electing representatives to consider legislation divides the citizens along geographical lines instead of along THOUGHT lines. In many cities wards are run out on street lines and men are compelled to vote for somebody they don't want because the man they do want lives on the other side of the gully, ally or avenue.

The result is that the council, or whatever the law making body is called, is not a representative body, but an actual mis-representative body. Representatives of stones and stumps rather than living men.

The ward system produces gross inequities and pushes to the front small-calibered men with large personal assertive powers and small executive and constructive abilities.

It substitutes ward interests and selfishness for the interests of the whole people. It is impossible to divide a city into wards having equal population, and if so divided approximately, growth and development change, so that even from a geographical point of view the councilmen are mis-representative, and the minority rules. Gerrymandering is an evil resulting from ward representation. Lines are so drawn as to put the majority party into a few wards and the minority party into a large number of wards. In Salem many years ago one ward had over half the voting strength of the city and the other four wards had the rest. The council was always of one party with one representative of the other party elected by an enormous majority.

In Portland, when the ward system was abandoned a few years ago, one of the ten wards had 3 per cent of the population of the city.

Many thousands of such instances could be stated. California at one time had members of its legislature elected from districts with less than 1200 voters, and from other districts having over 4,500 voters Oregon's districts now are subject to the same variations, although perhaps not so marked.

The remedy has been found and is being pushed by lovers of justice and their fellow men all over the world. Only in the United States does the movement lack the push and support that it should receive because as a nation we are so swollen with pride and ignorance that we imagine nothing better than our misrepresentative district system and out ineffective ballots can be devised.

The effective ballot makes every vote intelligently cast effective to the extent of 98 per cent.

Under the district and so-called majority-at-large system from 45 to 95 per cent of the ballots cast are ineffective, according to whether, in the estimate, certain facts are allowed to enter.

The election of candidates-at-large, however, is not enough, as this only gives a vigilant minority within the party lines having axes to grind an opportunity to force the majority party to put forward slick and plausible men. In a three-party fight the minority can and frequently does elect all its candidates with less than 40 per cent of the total vote. So the at-large plan is not desirable in itself.

It was to give the minority parties some representation that districts were invented and provided for. It frequently gives a majority party, however, a minority of the representatives to divide a city into districts, as it also sometimes gives a minority control to elect them at large.

In fact many students, going back

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COMMISSION SCORES P. & O. C. RAILWAY

SAYS COMPANY DID NOT CONSIDER LAWS IN LAYING OF TRACKS

The Portland & Oregon City Railway company is "in bad" with the State Public Service commission at Salem and has suffered denunciation as a law breaker from the collective lips of that august body. Following the denunciation the commission made rules and regulations for safeguarding the grade crossings along the lines of the company.

According to the report of the commission in which the denunciation was contained, the Portland & Oregon City Railway company proceeded with the construction of its line before asking the commission's permission to make a number of street crossings, crossings of highways and other lines of railway at grade.

In the order issued on Wednesday by the Public Service commission the following statement is made:

"In view of the fact that applicant has, in direct violation of the act referred to, constructed many crossings over and across highways at grade, no relief can be had from the commission as to said crossings. In addition to the applicant being charged with notice of the laws of the state, the commission repeatedly during the construction of the line, called applicant's attention to the necessity of first obtaining from this commission permission to cross highways at grade, but applicant has not seen fit to do so."

The commission, in view of the above facts, has ordered that the road install at crossings outside of the corporate limits of Portland and Milwaukie, standard highway warning signs, cattle guards and wing posts and whistling posts at a suitable distance. It is also ordered that all trains and engines come to a stop at all railroad crossings and at Holgate street, Foster road and Clackamas road. The Holgate street stop, according to the order, may be eliminated by the installation of a warning bell.

BUSINESS MEN TO RECRUIT

Several Clackamas County Men to Participate in Encampment

At least 100 men from Portland and vicinity for the citizens' military training encampment at American Lake, Wash., which opens August 28, is what the committee in charge of local recruiting is working for. This is the minimum of their hopes for enrollment, and if possible the recruiting will be pushed far past the 100 mark. Several from Clackamas county will probably attend the encampment.

Seattle is sending a large representation to the encampment, and it is the desire of Portland, although farther removed from the camp, to send as big a crowd as the Washington metropolis.

The last obstacle that had stood in the way of many who had contemplated enlisting was removed when the President signed the bill which provides appropriation for the encampment. This assures transportation, equipment and sustenance for the men who enlist.

The qualifications are not rigid. Every able-bodied citizen between the ages of 18 and 45 is eligible and the course of drill leads one to a position of eligibility for an officer's commission in case war should arise.

The camp is nicely situated, and the committee holds out the fact that those who give their vacation to the training encampment will find that it combines the features of a fine vacation with the serious work of acquiring military knowledge that will be of value in time of trouble.

The committee has sent out several hundred letters to men of Portland urging their enlistment. Up to date the total recruits are 36.

The headquarters for enlistment is on Washington street between Broadway and Park.

BASEBALL SUNDAY

Barbers and Printers to Vie for Honors on Canemah Diamond

The widely heralded battle-royal, in which the barbers and the printers of Oregon City will be matched at baseball, is to take place on the Canemah diamond Sunday morning.

For several weeks the tradesmen have been practicing diligently in an effort to get the kinks out of stiff joints and to learn a few of the rudiments of baseball. It is surmised that a huge comedy element will figure in the game.

The printers have been forced to call upon the reportorial and editorial staffs for the city newspapers for recruits for their team. On the other hand it is intimated the ranks of the barbers will be filled with the representatives of allied trades—boot blacks, for example.

The only certainty as to the outcome of the contest is that printer's ink and foamy lather will be sadly intermixed before the nine innings prescribed by the rules have been completed.